

[1 EDW. 8. & *Lancashire Electric Power* [Ch. lxxix.]
1 GEO. 6.] *Act, 1937.*



CHAPTER lxxix.

An Act to confer further powers on the Lancashire Electric Power Company and for other purposes. A.D. 1937.
[13th July 1937.]

WHEREAS the Lancashire Electric Power Company (hereinafter called "the Company") were incorporated by the Lancashire Electric Power Act 1900 and by that Act and the Lancashire Electric Power Act 1904 the Lancashire Electric Power Act 1906 and the Lancashire Electric Power Act 1929 are authorised (amongst other things) to acquire lands to erect generating stations and other works and to supply electricity in bulk and for other purposes defined in those Acts within parts of the county of Lancaster :

63 & 64 Vict.
c. ccxxxv.
4 Edw. 7.
c. liv.
6 Edw. 7.
c. cxcix.
19 & 20
Geo. 5. c. xi.

And whereas the Company have erected three generating stations all of which are selected stations for the purposes of the North West England and North Wales Electricity Scheme 1928 made under the Electricity (Supply) Act 1926 and have laid a large system of transmission and distributing mains throughout their limits of supply :

16 & 17
Geo. 5. c. 51.

And whereas the share capital of the Company authorised by the said Acts is £4,000,000 and the issued share capital on the first day of January nineteen hundred and thirty-seven was £3,850,000 divided into 385,000 ordinary shares of £10 each all of which are fully paid :

[Ch. lxxix.] *Lancashire Electric Power Act, 1937.* [1 EDW. 8. & 1 GEO. 6.]

A.D. 1937.

And whereas the Company are empowered by the said Acts to raise by borrowing on mortgage of their undertaking and the creation and issue of debenture stock any sum or sums not exceeding in the whole one-half of the ordinary shares in the capital of the Company for the time being issued and paid up and in exercise of that power the Company have raised money on mortgage of their undertaking of which the amount outstanding on the first day of January nineteen hundred and thirty-seven was £1,550,000 :

And whereas the demands for electricity in the Company's limits of supply have in recent years increased very rapidly and continue to increase and for the purpose of enabling the Company to meet those demands and to fulfil their obligations and to carry out an enlargement of their Kearsley generating station pursuant to directions issued by the Central Electricity Board it is expedient that they be authorised to raise additional share and loan capital :

And whereas it is expedient that further powers be conferred on the Company as by this Act provided and that the other provisions of this Act be enacted :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

Preliminary.

Short and
collective
titles.

1.—(1) This Act may be cited as the Lancashire Electric Power Act 1937.

(2) The Lancashire Electric Power Acts 1900 to 1929 and this Act may be cited together as the Lancashire Electric Power Acts 1900 to 1937.

Application
of Elec-
tricity (Sup-
ply) Acts.
62 & 63 Vict.
c. 19.
51 & 52 Vict.
c. 12.

2. This Act shall be deemed to be a special Act within the meaning of the principal Acts and the Electric Lighting (Clauses) Act 1899 but sections 2 and 3 of the Electric Lighting Act 1888 shall not apply to the undertaking authorised by the existing Acts and this Act or to the Company in reference thereto.

[1 EDW. 8. & *Lancashire Electric Power* [Ch. lxxix.]
1 GEO. 6.] Act, 1937.

3.—(1) The Companies Clauses Consolidation Act 1845 except sections 38 40 and 101 to 104 and the Companies Clauses Act 1863 except Part IV (Change of name) as respectively amended by subsequent Acts are so far as applicable for the purposes of this Act and not inconsistent with or varied by the provisions of the existing Acts and this Act hereby incorporated with this Act.

A.D. 1937.

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Incorporation of
general
Acts.

8 & 9 Vict.
c. 16.
26 & 27 Vict.
c. 118.

(2) The provisions of the schedule to the Electric Lighting (Clauses) Act 1899 which are incorporated with the Act of 1900 and the provisions of section 30 (except as regards a supply to lighting authorities) of that schedule so far as those provisions are applicable for the purposes of this Act and not inconsistent with or varied by the provisions of the existing Acts or this Act are hereby incorporated with this Act but save as aforesaid the provisions of that schedule shall not apply to the undertaking by this Act authorised or to the Company in reference thereto Provided that section 20 of the said schedule shall in its application to the undertaking by this Act authorised and to the Company in reference thereto have effect as if after the words "electric signalling communication" wherever they occur there were inserted the words "or electrical control of railways."

4. In this Act words and expressions to which by the Companies Clauses Consolidation Act 1845 or by the Electric Lighting Act 1882 or the schedule to the Electric Lighting (Clauses) Act 1899 meanings are assigned shall have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act unless the context otherwise requires—

Interpreta-
tion.

45 & 46 Vict.
c. 56.

"the Company" means the Lancashire Electric Power Company;

"the Act of 1900" "the Act of 1904" "the Act of 1906" and "the Act of 1929" respectively mean the Lancashire Electric Power Acts of those respective years;

"the existing Acts" means the Lancashire Electric Power Acts 1900 to 1929;

"the principal Acts" means the Electricity (Supply) Acts 1882 to 1936;

A.D. 1937.
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“Electricity Order” means a Provisional Order or Special Order made under the principal Acts or any of them;

“the area of supply” means the area of supply defined by the Act of 1900;

“the undertaking” means (except where the undertaking authorised by the existing Acts or by this Act or by any Electricity Order is expressly referred to) the whole undertaking of the Company as for the time being authorised by any Act of Parliament and any Electricity Order for which the Company are for the time being the undertakers;

“the authorised share capital” means the total amount which the Company are from time to time authorised by the existing Acts and this Act and any subsequent Act and by any Order made under section 6 (Increase of capital powers by Special Order) of this Act to raise by the creation and issue of ordinary shares;

“generating station” has the same meaning as in the Electricity (Supply) Act 1919;

“the Minister” means the Minister of Transport.

9 & 10
Geo. 5.
c. 100.

Financial provisions.

Additional
capital.

5. The Company may subject to the provisions of Part II of the Companies Clauses Act 1863 raise any additional capital not exceeding in the whole one million pounds (nominal capital) by the issue of new ordinary shares of ten pounds each.

Increase of
capital
powers by
Special
Order.

6. The authorised share capital may from time to time be increased to such extent as may be authorised by a Special Order made by the Electricity Commissioners and confirmed by the Minister in accordance with the provisions of the principal Acts and accordingly the Company are hereby authorised to apply for and the Electricity Commissioners and the Minister are hereby respectively authorised to make and to confirm such an Order. Provided that a Special Order made in pursuance of the powers conferred by this section shall be laid before each House of Parliament and shall not

[1 EDW. 8. & *Lancashire Electric Power* [Ch. lxxix.]
1 GEO. 6.] *Act, 1937.*

come into force unless and until approved either with or without modification by a resolution passed by each such House. A.D. 1937.
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7.—(1) The capital in new shares created by the Company under this Act or any Special Order made and confirmed pursuant to the last preceding section of this Act and the new shares therein and the holders thereof respectively shall be subject and entitled to the same powers provisions liabilities rights privileges and incidents whatsoever in all respects as if that capital were part of the now existing capital of the Company and the new shares were shares in that capital. Incidents of new capital.

(2) All shares created or to be created by the Company under the Act of 1900 the Act of 1929 and this Act and under any such Special Order as aforesaid shall for all purposes be deemed to form part of one and the same class of capital.

8.—(1) The Company may without obtaining any certificate of a justice under the Companies Clauses Consolidation Act 1845 borrow on mortgage of the undertaking any sum or sums not exceeding in the whole one-half of the nominal amount of any ordinary shares forming part of the additional capital which they are authorised to raise by section 5 (Additional capital) of this Act or may hereafter be authorised to raise by a Special Order made and confirmed pursuant to section 6 (Increase of capital powers by Special Order) of this Act and approved by Parliament Provided that no part of any such sum or sums shall be borrowed until the whole of the shares in respect of which the borrowing powers are to be exercised have been actually issued and fully paid. Power to borrow.

(2) Notwithstanding anything in subsection (2) of section 7 (Power to borrow) of the Act of 1929 the Company may at any time after the passing of this Act exercise in respect of any shares which are fully paid the powers of borrowing conferred by that section (so far as not exercised before the passing of this Act) without obtaining any certificate of a justice under the Companies Clauses Consolidation Act 1845.

9. The sections of the Act of 1900 and the Act of 1929 hereinafter mentioned shall so far as applicable and not inconsistent with the provisions of this Act Application of financial sections of former Acts.

[Ch. lxxix.] *Lancashire Electric Power* [1 EDW. 8. &
Act, 1937. 1 GEO. 6.]

A.D. 1937. — extend and apply to the provisions and for the purposes of this Act as if those sections with any necessary modifications were re-enacted herein :—

Act of 1900—

Section 9 (Shares not to be issued until one-fifth paid);

Section 10 (Calls);

Section 11 (Receipt in case of persons not sui juris);

Section 12 (Power to divide shares);

Section 13 (Dividends on half shares);

Section 14 (Dividend on preferred shares to be paid out of profits of year only);

Section 15 (Half shares to be registered and certificates issued);

Section 16 (Terms of issue to be stated in certificates);

Section 17 (Forfeiture of preferred shares);

Section 18 (Preferred shares not to be cancelled or surrendered);

Section 19 (Half shares to be half shares in capital);

Section 22 (For appointment of a receiver);

Section 24 (Application of moneys).

Act of 1929—

Section 8 (Debenture stock);

Section 11 (As to disposal of shares or securities).

Power to
apply funds.

10. The Company may apply for or towards the purposes of this Act to which capital is properly applicable any sums of money which they have already raised or are authorised to raise under the authority of the Act of 1900 or the Act of 1929.

Administrative provisions.

Notice of
interest of
director in
contracts.

11. For the purposes of the proviso to subsection (4) of section 16 (Directors) of the Act of 1929 a general notice given to the directors by one of them to the effect that he is a member of a specified company or firm and is to be regarded as interested in any contract which may

[1 EDW. 8. & *Lancashire Electric Power* [Ch. lxxix.]
1 GEO. 6.] Act, 1937.

after the date of the notice be made with that company or firm shall be deemed to be a sufficient declaration of interest in relation to any contract so made. A.D. 1937.

12. Section 98 (Proceedings to be entered in books to be signed by chairman and to be evidence) of the Companies Clauses Consolidation Act 1845 shall in its application to the Company as incorporated with the Act of 1900 the Act of 1929 and this Act have effect as if the words "or of the next succeeding meeting" were inserted therein after the words "shall be signed by the chairman of such meeting." Signing of minutes.

13. Notwithstanding anything in the Companies Clauses Acts 1845 to 1889 it shall not be obligatory on the Company to keep a register of transfers of shares or a register of transfers of debenture stock or mortgages so long as the Company in lieu of those registers shall keep a file of all transfers and evidences of transmission of any shares debenture stock or mortgages of the Company which are sent to them for registration in accordance with the provisions of those Acts. Registers of transfers.

14. Notwithstanding anything in any Act relating to the Company any contract or agreement required to be in writing and not under seal may be signed on behalf of the Company by the secretary or other person appointed in that behalf by the directors. As to contracts.

15.—(1) Section 76 of the Companies Clauses Consolidation Act 1845 relating to the appointment of proxies shall in its application to the Company have effect as though the following proviso were added thereto in lieu of the proviso contained in section 2 of the Companies Clauses Consolidation Act 1888 as amended by the Companies Clauses Consolidation Act 1889 (viz.):— As to proxies.
51 & 52 Vict.
c. 48.
52 & 53 Vict.
c. 37.

"Provided that where the shareholder is a member of a body corporate the proxy may be any member or officer of such body though not personally a shareholder in the company."

(2) Where a body corporate being a holder of ordinary shares is present at a meeting of the Company by a proxy who is not a holder of shares in the capital of the Company such proxy shall be entitled to vote for such body on a show of hands.

A.D. 1937.

Works and supply of electricity.

Transfer of
under-
takings to
Company by
agreement.

16.—(1) (a) The Company may by agreement (but not otherwise) acquire from the undertakers for the time being (whether a local authority company body or other persons) for the purposes of any Electricity Order relating to a district or place within the area of supply the undertaking authorised by such Order and the powers rights authorities and privileges of the undertakers thereunder and the undertakers for any such Electricity Order which has been made by the Board of Trade or confirmed by the Minister before the passing of this Act or shall be confirmed by the Minister before the first day of January nineteen hundred and thirty-eight (whether such Order shall have been confirmed or approved by Parliament before the passing of this Act or shall be approved by Parliament before or after the said first day of January) may with the approval of the Electricity Commissioners transfer their undertaking powers rights authorities and privileges to the Company on such terms and conditions as may be agreed upon.

(b) If the Company so acquire any such undertaking powers rights authorities and privileges they shall be deemed to be the undertakers for all the purposes of the Electricity Order by which the undertaking so acquired is authorised and the provisions of that Order shall apply to the supply of electricity by the Company within the area of supply defined by the Order. Provided that in the case of any Electricity Order made by the Board of Trade before the commencement of the Electric Lighting (Clauses) Act 1899 the provisions of the schedule to that Act as amended by subsequent Acts shall be deemed to have been incorporated with that Order and shall control and supersede such of the provisions of the Order as are at variance or inconsistent therewith.

(2) Any capital money received by any local authority in respect of any transfer under this section shall be applied by the authority in manner provided by paragraph (2) of section 7 of the schedule to the Electric Lighting (Clauses) Act 1899.

(3) If the undertaking authorised by any Electricity Order be acquired by the Company under this section

[1 EDW. 8. & *Lancashire Electric Power* [Ch. lxxix.]
1 GEO. 6.] Act, 1937.

the provisions of the Electric Lighting Act 1888 shall A.D. 1937,
apply to that undertaking Provided that—

(a) if the undertaking be transferred to the Company from a local authority the periods at which the local authority may purchase the undertaking so transferred or so much thereof as is within their jurisdiction shall be reckoned from the date of the transfer thereof to the Company; and

(b) none of the provisions of any Electricity Order by which any undertaking so acquired by the Company is authorised or of the principal Acts or the existing Acts and this Act shall extend to authorise the purchase by any local authority of any generating station or other works of the Company used or required for the purpose of supplying electricity to any other part of the area of supply defined by the Act of 1900 or used exclusively for the purpose of supplying electricity for power other than electricity supplied through any distributing station used for the general supply of electricity in the area of supply defined by the Order.

(4) If any undertaking acquired by the Company under this section be purchased by any local authority the Company may continue to supply electricity for power under the Act of 1906 within the area of supply defined by the Electricity Order by which the undertaking is authorised to persons taking such supply from the Company at the date of the purchase through or by means of any works which shall not be purchased by the local authority without any consent to such supply being required under section 5 (Extension of powers) of the Act of 1906.

(5) The following sections of the existing Acts are hereby repealed:—

Act of 1904—

Section 4 (Transfer of undertakings of local authorities and others to Company).

A.D. 1937.

Act of 1906—

Section 19 (Transfer of undertakings to Company).

Act of 1929—

Section 35 (Transfer of undertakings to Company).

(6) Notwithstanding the repeal of the sections mentioned in the immediately preceding subsection—

(a) All Electricity Orders which have been acquired by the Company under the sections so repealed or any of them and the powers and provisions of those Orders shall continue in full force and effect and the Company or any local authority or other person shall have all and the same rights powers and privileges and be subject to all and the same obligations and liabilities under or with respect to those Orders as they respectively had and were subject to immediately before the passing of this Act; and

(b) The provisions of subsections (3) and (4) of this section shall apply with respect to those Electricity Orders as if the Orders had been acquired by the Company under this section but for the purposes of the said subsection (3) the date of the acquisition of any such Order shall be the date on which the Order was acquired by the Company under the sections so repealed.

Acquisition of generating stations &c. by agreement.

17.—(1) The Company may by agreement purchase take on lease or otherwise acquire work use maintain alter and improve any generating station or sub-station and the works connected therewith or incidental thereto belonging to any local authority or other undertakers authorised to supply electricity in any area within or partly within or adjoining the area of supply and any such undertakers may transfer or lease any such generating station sub-station and works together with their powers rights authorities and privileges in connection therewith or incidental thereto to the Company on such terms as may be agreed.

[1 EDW. 8. & *Lancashire Electric Power* [Ch. lxxix.]
1 GEO. 6.] Act, 1937.

(2) If the Company so acquire any such generating station sub-station or works and any such powers rights authorities and privileges they may for the purpose of carrying on maintaining and working the generating station sub-station or works so acquired by them and of connecting the same with the area of supply exercise all the powers rights authorities and privileges so acquired by them and any generating station sub-station or works acquired by the Company under this section or any works executed by them under any powers so acquired by them shall be deemed to form part of the undertaking of the Company authorised by the existing Acts and this Act. •A.D. 1937.

(3) Nothing in this section shall exonerate the Company from any indictment action or other proceeding for nuisance if any nuisance be caused or permitted by the Company on any land on which any such generating station or sub-station is situated and for which nuisance the undertakers from whom the generating station or sub-station was acquired by the Company would have been liable if caused by them.

(4) Nothing in this section shall authorise the Company except with the consent of the Electricity Commissioners to acquire any powers rights authorities or privileges of any undertakers with respect to the supply of electricity or to purchase or take on lease (other than a lease for a term ending before the expiry of seven years from the passing of this Act) any generating station or main transmission line.

(5) If any generating station acquired by the Company under the provisions of this section be or shall become a selected station for the purposes of a scheme under the Electricity (Supply) Act 1926 then in construing section 13 of that Act such station shall be deemed to be an existing generating station only to the extent to which the Company are supplied by the Central Electricity Board for the purposes of the undertaking of which the station formed part immediately before the date of its acquisition by the Company.

18.—(1) The consideration payable by the Company in respect of the transfer to them of— Consideration for transfer.

- (i) any undertaking or any powers rights authorities and privileges in pursuance of section 16

A.D. 1937.

(Transfer of undertakings to Company by agreement) of this Act; or

- (ii) any generating station sub-station or works in pursuance of the last preceding section of this Act;

may if the local authority or other undertakers transferring the same and the Company so agree be discharged wholly or in part by the allotment to such undertakers of fully paid-up shares debenture stock or mortgages of the Company of any class and any such undertakers may accept hold and dispose of such shares debenture stock or mortgages Provided that any capital money received by any undertakers being a local authority from the disposal of any such shares debenture stock or mortgages shall be applied by them in manner provided by paragraph (2) of section 7 of the schedule to the Electric Lighting (Clauses) Act 1899.

(2) All shares debenture stock or mortgages issued for the purposes of this section shall for all purposes be deemed to be fully paid up.

For protection of Southport Corporation.

19. So long as the Birkdale District Electric Supply Company Limited are the authorised undertakers for the purposes of the Birkdale Electric Lighting Order 1898 pursuant to the deed of transfer dated the thirty-first day of December nineteen hundred and one and made between the former urban district council of Birkdale and that company nothing in this Act shall authorise that company except with the consent of the mayor aldermen and burgesses of the borough of Southport as the successors of the said council to transfer or lease to the Company the undertaking authorised by that Order or any of their powers rights authorities and privileges as the undertakers for that Order or any generating station sub-station or works forming part of that undertaking.

Financial arrangements with other companies &c.

20.—(1) The Company may subscribe for purchase hold and dispose of shares or stock of any company taking or agreeing to take a supply of electricity from the Company or establishing or about to establish factories or electrical or other works within the area of supply and may lend money on mortgage or bond or other security to any such company or to any firm

[1 EDW. 8. & *Lancashire Electric Power* [Ch. lxxix.]
1 GEO. 6.] Act, 1937.

or person taking or agreeing to take a supply of electricity from the Company or establishing or about to establish factories or electrical or other works within the area of supply Provided that the aggregate amount so subscribed and lent by the Company under this section and not paid off shall not at any one time exceed five hundred thousand pounds.

A.D. 1937.

(2) The Company may also by agreement with the proprietor of any shares stock or securities of any such company as aforesaid effect exchanges of shares or securities of the Company for all or any of the shares stock or securities of the proprietor and on such terms and conditions as the directors may think fit.

21. The provisions of section 16 of the Electricity (Supply) Act 1919 as modified and set forth in the Fourth Schedule to the Electricity (Supply) Act 1926 and as amended by the Electricity (Supply) Act 1928 shall extend and apply in the case of—

Compensation for deprivation of employment.
19 & 20
Geo. 5. c. 4.

(a) the transfer to the Company under the powers conferred by section 16 (Transfer of undertakings to Company by agreement) of this Act of any undertaking authorised by an Electricity Order which has been or shall be made or confirmed by the Minister during the years nineteen hundred and thirty to, nineteen hundred and thirty-seven; or

(b) the purchase taking on lease or other acquisition by the Company of a generating station or other works under the powers conferred by section 17 (Acquisition of generating stations &c. by agreement) of this Act; or

(c) the cessation of operation or change in the method of operation of any undertaking or any part of any undertaking in consequence of any such transfer as is referred to in paragraph (a) or of any such purchase taking on lease or acquisition as is referred to in paragraph (b);

as if such transfer purchase taking on lease or acquisition were an acquisition of a generating station under or in consequence of the said Act of 1926 and as if any such cessation of operation or change in method of operation were a restriction on the working or use of a generating station under or in consequence of that Act.

A.D. 1937.

For the purposes of this section the Fourth Schedule to the said Act of 1926 shall be read and have effect as if the words "employed on an annual salary" in the proviso to that schedule were omitted and the expression "officer" meant a person employed in the performance of administrative professional clerical supervisory or technical duties not being a person employed by way of manual labour at a weekly or less than a weekly wage.

Restricting use of electricity for other purposes.

22.—(1) Where the charges made by the Company for electricity supplied by them for one purpose are less than the charges made by them for electricity supplied for another purpose electricity supplied by the Company for the first-mentioned purpose shall not without the consent in writing of the Company be used (whether after transformation or conversion or not) for the last-mentioned purpose and if any person to whom any electricity is supplied uses it or suffers it to be used in contravention of the provisions of this section he shall be liable to a penalty not exceeding five pounds and to a further penalty not exceeding forty shillings for every day on which the offence is committed after conviction.

(2) Where a person is convicted of an offence under this section in respect of the use of electricity for any purpose the court may direct that all or any portion of the electricity which has been supplied to him by the Company within one year previous to the date when the proceedings were instituted at a rate of charge lower than the rate of charge appropriate for electricity supplied for the said purpose shall be charged for at the last-mentioned rate.

(3) For the purposes of this section electricity shall not be deemed to be used for lighting purposes by reason only that it is used for the purposes of some electrical apparatus which contains a lamp if the purposes of the apparatus as a whole are not lighting purposes.

Power to lay down connecting lines in certain cases.

23.—(1) For the purpose of supplying electricity to any premises to which the Company are for the time being authorised to supply electricity the Company may lay down place maintain and use electric lines in order to connect such premises to a service line already laid by the Company for the purpose of affording a supply

[1 EDW. 8. & *Lancashire Electric Power* [Ch. lxxix.]
1 GEO. 6.] Act, 1937.

of electricity to adjoining premises and for that purpose may cut or otherwise interfere with any party wall or fence to such premises and adjoining premises. A.D. 1937.

(2) In relation to any such electric lines as aforesaid the Company shall have the powers and be subject to the provisions of sections 17 18 20 and 77 of the schedule to the Electric Lighting (Clauses) Act 1899.

(3) The provisions of section 14 of the schedule to the Electric Lighting (Clauses) Act 1899 so far as they relate to the Postmaster-General shall extend and apply to the laying down or construction by the Company of any electric line under the provisions of this section.

(4) The provisions of this section shall not apply to any premises (not being a dwelling-house) belonging to a railway company railway committee or canal company except with the consent of such company or committee.

24. In any case in which the proper and efficient supply of electricity necessitates the substitution of a new electric line or other work situate in or upon the private property of a consumer the Company after giving forty-eight hours' notice in writing under the hand of the secretary or other duly authorised officer of the Company to the occupier or if there be no occupier then to the owner or lessee of any house building or land in which such electric line or work is laid or fixed may enter such house building or land between the hours of nine in the morning and four in the afternoon or with the authority in writing of a justice at any other time for the purpose of effecting such substitution repairing all damage caused by such entry or substitution:

Power of entry for substitution of electric lines &c.

Provided that the Company shall not exercise the powers of this section in respect of any premises which form part of the railway of any railway company or railway committee or of the canal of any canal company except with the consent of such company or committee.

25. The Company may levy and recover such charges as they think fit for a second or subsequent examination and testing of electric lines fittings and apparatus on premises about to be connected to the mains of the Company if on the first examination and testing it is found that the electric lines fittings and apparatus

Charges for testing electric lines &c. in certain cases.

A.D. 1937. — do not comply with the regulations for the time being in force made by the Electricity Commissioners under the principal Acts for ensuring a proper and sufficient supply of electrical energy Provided that the charge for any second or subsequent examination and testing shall not exceed ten shillings.

Miscellaneous.

Power to retain and sell &c. lands.

26.—(1) Notwithstanding anything in the Lands Clauses Acts or in any other Act or Acts to the contrary the Company may retain hold and use for such time as they may think fit or may sell lease exchange or otherwise dispose of to such persons in such manner and for such consideration and on such terms and conditions as they may think fit and in case of sale either in consideration of the payment of a gross sum or of an annual rent or of any payment in any other form any lands acquired at any time by them or any interest in any such lands and may sell exchange or dispose of any rents reserved on the sale lease exchange or disposal of such lands or interests and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange.

(2) Section 33 (Company may dispose of lands not required) of the Act of 1929 is hereby repealed.

Further powers of entry on premises.

27.—(1) The powers conferred on the Company by section 24 of the Electric Lighting Act 1882 of entering premises shall be extended as follows:—

- (a) the premises which may be entered shall include all premises in which electric fittings are being or have been installed with a view to taking a supply of electricity from the Company;
- (b) the purposes for which premises may be entered shall include the inspection of all electric fittings on the premises whether belonging to the Company or not the ascertainment of whether or not there is or has been any contravention of any of the Acts or Orders applying to the Company or of any regulation or byelaw

[1 EDW. 8. & *Lancashire Electric Power* [Ch. lxxix.]
1 GEO. 6.] *Act, 1937.*

made thereunder and (where the Company are authorised under the provisions of any such Act Order regulation or byelaw to cut off the supply of electricity to the premises) the cutting off of such supply. A.D. 1937.

The Company shall not have any power of entry into any such premises except through an officer duly authorised by the Company who shall if so required produce his authority.

(2) Any person who shall refuse to admit any such officer of the Company to any premises which they are entitled to enter in pursuance of the said section 24 as extended by this section or shall hinder any such officer from entering any such premises or from exercising the powers conferred by the said section as so extended shall be liable to a penalty not exceeding five pounds and to a further penalty not exceeding twenty shillings for every day on which the offence is continued after conviction.

(3) For the purposes of this section "electric fittings" include electric lines meters accumulators fittings works and apparatus for the supply of electricity.

(4) The provisions of this section shall not apply to or in respect of any building or premises (not being a dwelling-house) belonging to—

(a) a railway company or railway committee and used for the purposes of their railway undertaking or forming part of any station or goods depot; or

(b) a canal company and used for the purposes of their canal undertaking or forming part of any wharf or goods depot.

28. For the purposes of section 13 of the Electric Lighting Act 1882 in its application to the Company in relation to the undertaking authorised by the existing Acts and this Act and the undertaking authorised by any Electricity Order for which the Company are for the time being the undertakers and for the purposes of section 12 of the schedule to the Electric Lighting Act 1882 in its application to the Company As to county roads.

A.D. 1937. (Clauses) Act 1899 as incorporated with the existing Acts and this Act and any such Electricity Order a county council shall be deemed to be a local authority.

Form of accounts.

29.—(1) Notwithstanding anything in section 9 of the Electric Lighting Act 1882 (as amended by section 6 of the schedule to the Electric Lighting (Clauses) Act 1899) in its application to the Company in respect of the several undertakings from time to time belonging to them whether authorised by the existing Acts and this Act or by any subsequent Act or by any Electricity Order for which the Company are for the time being the undertakers it shall not be necessary for the Company to fill up a separate annual statement of accounts in respect of each of such undertakings but they shall fill up one annual statement of accounts in respect of all of such undertakings.

(2) Each annual statement of accounts to be filled up by the Company pursuant to this section shall be in such form and contain such particulars and be published in such manner as may from time to time be prescribed in that behalf by the Electricity Commissioners.

(3) Subject to the provisions of this section the provisions of the said section 9 of the Electric Lighting Act 1882 (as amended as aforesaid) shall extend and apply to each annual statement of accounts to be filled up pursuant to this section.

Protection of seals &c. of Company.
34 & 35 Vict. c. 41.

30.—(1) The provisions of section 38 of the Gasworks Clauses Act 1871 incorporated with the Electric Lighting Act 1882 shall apply to any person who wilfully fraudulently or by culpable negligence injures or detaches or suffers to be injured or detached any of the sealing or locking devices attached to any sealed or locked receptacle meter or apparatus inserted by the Company on any electric line within a consumer's premises or opens or suffers to be opened any such sealed or locked receptacle meter or apparatus.

(2) If any person accidentally injures or detaches or suffers to be injured or detached any such sealing or locking device as aforesaid he shall within forty-eight hours of such injury or detachment give notice

[1 EDW. 8. & *Lancashire Electric Power* [Ch. lxxix.]
1 GEO. 6.] Act, 1937.

in writing thereof to the Company and any person who fails to comply with the provisions of this subsection shall be liable to a penalty not exceeding five pounds. A.D. 1937.
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31. Any notice to be served by the Company on a person supplied with electricity shall be sufficiently authenticated by the signature of the secretary or other officer of the Company for the time being authorised in writing by the directors being affixed thereto in writing or in print or by a stamp. Authentification of notices by Company.

32.—(1) If the Company commence proceedings for the summary recovery of a sum due for the supply of electricity any other sum due or payable to the Company in respect of the sale or hire of any electric fittings supplied by them for or in connection with the consumption or use of electricity or the provision of materials and work in connection therewith or the fixing setting up repairing altering maintaining or removal thereof may be included in the same summons and may be recovered summarily if the amount due or payable in respect thereof does not exceed twenty pounds. Recovery summarily of sums due for fittings.

(2) In this section the expression “electric fittings” has the same meaning as in section 48 of the Electricity (Supply) Act 1926.

33. Save as is otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts. Recovery of penalties &c.

34.—(1) Proceedings for the recovery of any demand made under the authority of this Act or any subsequent Act relating to the Company or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in an action founded on contract or tort. Recovery of demands.

[Ch. lxxix.] *Lancashire Electric Power* [1 EDW. 8. &
Act, 1937. 1 GEO. 6.]

A.D. 1937. — (2) Section 38 (Recovery of demands) of the Act of 1929 shall after the passing of this Act have effect as if the words “in an action founded on contract or tort” were substituted for the words “in a personal action.”

Costs of Act. **35.** All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

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